ORDINANCE NO. 379

AN ORDINANCE PROHIBITING THE KEEPING, STORING, AND/OR MAINTAINING DISASSEMBLED, ABONDONED, INOPERABLE, UNLICENSED, JUNKED OR WRECKED MOTOR VEHICLES UPON PRIVATE OR PUBLIC PROPERTY WITHIN THE CORPORATE LIMITS, PROVIDING THE MANNER OF REMOVAL AND DISPOSAL OF SAME; FIXING THE PENALTY THEREFOR: DECLARING AN EMERGENCY AND FOR OTHER PURPOSES.

WHEREAS, in many areas in the City of Rector disassembled, inoperable, abandoned, unlicensed, junked and/or wrecked motor vehicles, as defined in this ordinance, have been permitted to remain on private and public property for long periods of time, and,

WHEREAS, said motor vehicles constitute attractive nuisance for children and have caused injuries to children, and,

WHEREAS, said motor vehicles also provide harborage for rats, insects and other animals constituting a menace to the public's health, safety and welfare; and,

WHEREAS, the storage of said vehicles in improperly zoned areas, whether on public or private property, is unsightly, obnoxious, detrimental to the neighborhood, and results in depreciation of property value.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF Rector, ARKANSAS:

DEFINITIONS

Inoperable Motor Vehicles: An inoperable motor vehicle, for the purpose of this ordinance, shall be interpreted to mean any vehicle placed on blocks or one that does not have current, valid license plates, or has one or more wheels removed, or is not in proper condition to be legally operated on the streets of the City of Rector because of lack of proper mufflers, tires, headlights, or other mechanical defects or because of lack of an integral part of assembly, or is not capable of assembly, or is not capable of self-locomotion.

Open Storage: Open storage, for the purpose of this ordinance, shall be interpreted to include a carport which has at

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least two open sides.

Public Property: Public property, for the purpose of this ordinance, shall be constituted as any street, alley, right-of-way or property that is owned or under the control and supervisio of the municipality.

Private Property: Private property, for the purpose of this ordinance, shall be interpreted to mean any and all other property that is not classified as public.

Person: The word "person", for the purpose of this ordinance, shall extend and be applied to firms, corporations or voluntary associations as well as to individuals unless plainly inapplicable.

SECTION 1: That from and after the passage and approval of this ordinance, it shall be unlawful for any person to maintai store or keep upon any public property, a junked, wrecked or inoperable, unlicensed vehicle as defined in this ordinance.

SECTION 2: It shall be unlawful for any person to keep, maintain or store junked, wrecked, inoperable or unlicensed vehicle, as defined in this ordinance, upon private property in the open within the corporate limits of this city for a period of more than three (3) days.

SECTION 3: Whenever officers of the Police Department, Health Department or Fire Department observe any such vehicles as defined in this ordinance, placed or stored in the open upon public property, they shall file a written report with the Police Departments, setting forth the location of said vehicle, its make or model, the license number and the name of the owner, if known. The Police Department shall notify the owner in writing to remove the vehicle within Twenty-Four (24) hours and in the event said vehicle is not removed, the Police Department is hereby authorized and directed to remove said vehicle and impound the same in accordance with the laws governing abandoned motor vehicles. In the event said motor vehicle obstructs the movement of traffic or constitutes a traffic hazard, the Police Department shall immediately remove said motor vehicle. The primary responsi bility for the enforcement of this ordinance is placed upon the

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Police Department of the City of Rector.
When officers heretofore designated observe or find motor vehicles disassembled, abandoned, unlicensed, junked or wrecked, as defined in this ordinance, in the open private property, the Police Department shall be notified and the Police Department shall exert every effort to locate the owner of the motor vehicle or the person responsible for placing same upon private property and serve a written notice upon said person to remove the vehicle within three (3) days of said notice. In the event the motor vehicle owner or the person responsible for parking or storing same in the open upon private property cannot be located, then a written notice shall be given to the owner of the property or the person in custody or control of the property notifying them to remove said vehicle within twenty (20) days, if the owner of the property or the person in possession or control of the property has not removed said vehicle, the Police Department shall take the necessary action to remove said vehicle and same shall be handled as an abandoned automobile under the laws of the State of Arkansas and disposed of accordingly.

"The cost of investigation, towing, removal and storage of said motor vehicle shall constitute a lien upon said property from which it was removed, not to exceed Twenty-five ($25.00) dollars, and the City Attorney is hereby authorized and directed to take the necessary legal action to establish and perfect a lien against said property, provided, however, that nothing in this ordinance is to be interpreted as preventing any licensed business dealing in any manner with any type of automobile from operating in a properly zoned area. It is hereby further provided that nothing in said ordinance is to be interpreted as preventing a person from keeping upon his private property one such inoperable motor vehicle, as defined in this ordinance, for the purpose of making minor repairs or preparing and/or modifying a vehicle for the purpose of racing the same upon sanctioned drag strips or race courses. In either of the situations mentioned above, the owner of said vehicle shall be permitted to obtain a permit from the Police Department of the City of Rector

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Arkansas, allowing him to keep such an automobile upon his property for a period of three (3) months for the purposes stated aforesaid. Said permit may be extended for an additional three (3) months where necessary to complete construction or repairs."

SECTION 4: Any violation of this ordinance shall be deemed a misdemeanor and upon conviction shall be punishable by fine of not less than Twenty-five dollars ($25.00) nor more than One Hundred dollars ($100.00), and each day and each vehicle and each day for each vehicle such violation occurs shall be considered a separate offense.

SECTION 5: All ordinances or parts of ordinances in conflict herewith are hereby repealed.

SECTION 6: The City Council has ascertained that numerous motor vehicles, as defined in this ordinance, are being accumulated upon private and public property throughout the corporate limits of the city and such practice constitutes fire and health hazards as well as being unsightly and obnoxious and this situation should be corrected at once. THEREFORE, an emergency is hereby declared to exist and this ordinance being necessary for the immediate preservation of the public's peace, health and safety, shall be in full force and effect immediately upon its passage and approval.

PASSED: August 17 1987

APPROVED: Reuben D Seay
MAYOR

SPONSOR: _____

ATTEST: Dorene Gordon

APPROVED AS TO FORM:

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